



DECISION

Complaint No. : POS/5841/2024/Adv-M

Name and address of the complainant : The Director Charged Parking, Karachi Metropolitan, Room No. 3, 2nd Floor, KMC Building, M.A. Jinnah Road, Karachi.

Name of the Agency Complained against : Town Municipal Corporation Safoora Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : ILLEGAL INTERFERENCE OF DIRECTOR CHARGED PARKING, TOWN MUNICIPAL CORPORATION, SAFOORA.

Complaint:

The Director (Charged Parking), Karachi Metropolitan Corporation, filed this complaint dated 9.12.2024, about interference by the staff of Town Municipal Corporation Safoora in the control of parking on a road in Gulistan-e-Jauhar starting from Continental Bakery and ending at Kamran Chaurangi, on which large number of marriage halls and banquets are located. He requested the intervention of this Institution to resolve this issue.

Proceedings:

2. After admitting the complaint for investigation under Section 10 of the Establishment of the Office of the Ombudsman for the Province of Sindh Act 1991, the same was forwarded to the Municipal Commissioner, Town Municipal Corporation, Safoora, for his report.

In a hearing held on 30.12.2025 the Deputy Director (Charged Parking) KMC was present, whereas there was no representation from the TMC Safoora and the Municipal Commissioner was absent despite service of notice. Accordingly it was ordered that the attendance of Municipal Commissioner be ensured on 8.1.2026.

3. The Municipal Commissioner and Director, (Charged Parking) of the Town Municipal Corporation Safoora, appeared on 15.1.2026, and stated that since this road falls within the domain of the TMC, all relevant issues are to be handled by the TMC, and as such the complaint filed by KMC is not valid. The Director (Charged Parking), Town Municipal Corporation, Safoora, also submitted his written report that the road in question clearly falls within the jurisdiction of TMC Safoora, as per the provisions of the Local Government Act 2013. He further stated that under Schedule II Part-1 of the Sindh Local Government Ordinance 2013, the functions of KMC are limited to inter-district

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main roads only, whereas internal roads are to be dealt by the concerned Town Municipal Corporation, and as such KMC cannot claim jurisdiction of this road on the basis of an Administrative Notification, which cannot override the statutory provisions of SLGO 2013. He further stated that the valet parking on this road not only disturbs the free flow of traffic but also causes problems to the other residents of the area. He also denied that unlawful action has been taken by their staff against the Valets.

Findings:

4. From the above proceedings, it is clear that this matter pertains to counterclaims of KMC and TMC on the domain of this road in Gulistan-e-Jauhar which connects Jauhar Chaurangi Road from Continental Bakery with Kamran Chaurangi. Based on the provision available in SLGO 2013 defining which roads are to be managed by KMC, regular Notifications have been issued by the Local Government Department in the past about the main roads of Karachi, and this internal road has never been included in any such notification. The administrative order on which Karachi Metropolitan Corporation, is relying cannot supersede the law.

Decision:

5. In view of the above findings, I, under Section 11 of the Establishment of the Office of Ombudsman for Province of Sindh Act, 1991, hereby direct the Additional Chief Secretary Local Government to amend the instructions conveyed vide letter No. SLUB/SCUG/GEN/2015/3037 dated 7.12.2015 and clarify the mandate of KMC and TMCs strictly in accordance with SLGO, 2013 within six weeks under intimation to this office thereof.

“Given under my hand and seal of office”



Sd/-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz, PAS
OMBUDSMAN SINDH
Karachi, dated 21-5-2026